

SENATE BILL NO. 370

INTRODUCED BY M. YAKAWICH

A BILL FOR AN ACT ENTITLED: "AN ACT PROVIDING THAT INDIVIDUALS SUMMONED FOR JURY DUTY MUST RECEIVE \$60 A DAY AND AN ADDITIONAL \$60 A DAY IF SELECTED FOR JURY DUTY; PROVIDING A FUNDING ALLOCATION; AND AMENDING SECTION 3-15-201, MCA."

BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

Section 1. Section 3-15-201, MCA, is amended to read:

"3-15-201. Fees in courts of record. (1) A grand or trial jury panel member must receive \$12 ~~\$60~~ per a day for attendance before any court of record and a mileage allowance, as provided in 2-18-503, for traveling each way between the member's residence and the court. Those jurors selected from the panel for a case must receive an additional \$13 ~~\$60~~ a day while serving.

(2) A juror who is excused from attendance ~~upon~~ on the juror's own motion on the first day of appearance in obedience to a notice or who has been summoned as a special juror and not sworn in the trial of the case forfeits per diem and mileage."

NEW SECTION. **Section 2. Funding allocation.** There is funding allocated to the ~~department of justice~~ OFFICE OF COURT ADMINISTRATOR to reimburse ~~counties~~ COURTS OF RECORD for the funding required by 3-15-201 in criminal cases. A ~~county~~ COURT OF RECORD seeking reimbursement shall provide an invoice to the ~~department~~ OFFICE OF COURT ADMINISTRATOR within 30 days of the final day of a criminal trial or settlement of a criminal case if the settlement occurs after the jury is required to report to the courthouse or the jury is empaneled.

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